IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III (SPECIAL BENCH)

Item No.202
New CA-17/2022
In
CA(CAA)-99/ND/2021

IN THE MATTER OF:
M/s. Kiyansh Creations Pvt. Ltd. With Sonansh Creations Pvt. Ltd. **....APPLICANT**

SECTION
U/s 230-232

Order delivered on 31.01.2022

CORAM:
SHRI HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

SHRI NARENDER KUMAR BHOLA
MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Adv Mukesh Sukhija a/w Ms. Pooja Bhatia PCS for petitioners
For the Respondent :

ORDER

New CA-17/2022:-

This is an Application filed under Rule 11 of the NCLT Rules, 2021 read with Section 151 of the Code of Civil Procedure 1908 on behalf of the Applicants for pre-ponement of the date of hearing along with an affidavit.

This application is for seeking preponement of CA-99/ND/2021.

After hearing the Counsel for the Petitioner Companies, we allow the present CA-17/2022 and the main petition is taken up for consideration.

Counsel for the Applicant Companies has taken us through the petition which is the 1st Motion Petition in terms of Section 230-232 of the Companies Act, 2013.

In all, there are two Companies, one Transferor Company and the other Transferee Company. The Counsel has submitted that both the Companies are closely held Companies as family members of the promoters are Shareholders in each of these two Companies. It is seen that each of those 5 individual Shareholders have given no objection to the present Scheme of Amalgamation as also seek exemption from convening the Shareholders' Meeting to consider the present Scheme of Amalgamation.

Further, it is submitted by the Counsel for the Applicant Companies that there are no Secured Creditors in the Transferor Companies and only one Unsecured Creditor is there. He submits that the said Creditor has given its no objection to the present Scheme of Amalgamation by way of an affidavit.

Further, the Counsel submits that the Transferee Company has only two Secured Creditors, who have also given their no objection in the matter.

It is also observed that the Transferee Companies are having 5 Unsecured Creditors and they have also given their no objection affidavit to the present Scheme of Amalgamation.

Hence, from the above, it is clear that all the parties who are concerned with the present Scheme of Amalgamation have given their no objection to the Scheme of Amalgamation as also seeking exemption from holding the Shareholders Meeting/Secured Creditors Meeting.

After going through the present petition as also hearing the submissions made by the Counsel, we hereby **allow** the present petition and grant exemption from holding the Shareholders' meetings as well as the Secured Creditors/Unsecured Creditors meetings in each of the Companies, under consideration.

In addition, the Counsel for the Petitioner Companies is directed to serve a copy of the present petition within a week to all the Statutory Authorities, namely, the Regional Director (Central Government), ROC, Official Liquidator and Income Tax Department for filing their report in the matter.

The Counsel submits that there are no Sectoral Regulators concerning these Companies. He is directed to file an affidavit to the effect that there are no Sectoral Regulators in the matter.

Accordingly, the present petition is **disposed of** in terms of the above directions.

(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

(NARENDER KUMAR BHOLA)
MEMBER (TECHNICAL)

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